



File No.: EXP202311826

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 11, 2023, a complaint was received by this Agency from Ms. A.A.A. (hereinafter, the complainant) against TELEFÓNICA MÓVILES ESPAÑA, S.A.U. (hereinafter, the respondent) for not having duly addressed her rights.

The complainant sent several emails to the respondent at the address `te_atencion_web_movistar@telefonica.com` requesting information regarding the portability of a number from one operator to another without her consent.

The first of these, dated April 26, 2023, stated:

"In order to gather all possible information regarding the traceability of the number (**PHONE.1), having been the holder of this number at Yoigo, portability to Movistar was carried out in 2018. Therefore, I request all information you have regarding this, calls, recordings, document signatures, etc."

Subsequently, another email was sent on May 4, 2023:

"I am requesting again, as I have been informed via email, in writing and signed in my name, the confirmation of having facilitated the portability to Movistar. Attached is my ID."

Along with her complaint, she provided copies of both emails.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent stated that "(...) there is no record of the prior request for the exercise of rights at the addresses that Telefónica has enabled for this purpose."

"(...) it has not been possible to recover the email with the copy of the ID that Ms. A.A.A. claims to have sent on May 4, 2023, requesting confirmation of having facilitated the portability to Movistar of the line **PHONE.1.

Consequently, it has not been possible to verify the identity of Ms. A.A.A., in order to respond to the exercise of the right of access that she claims to have requested."

The respondent indicated that "Our systems show the request for portability to Movistar of the line **PHONE.1, requested by someone who identified themselves as Ms. A.A.A., dated January 5, 2018.

The mentioned request is recorded in two voice recordings corresponding to two individuals, in addition to the operators, the transcription of which is attached below, in order not to affect the rights of third parties:"

"(...) A response has been sent to Ms. A.A.A. by letter addressed to the email address listed in the complaint (...).

There are no incidents, as the portability was managed, providing Ms. A.A.A. with in-person assistance at our associated distributors to finalize the portability process. (...).

No incidents have occurred, as the channels specifically enabled for requests for the exercise of rights regarding data processing were made available to Ms. A.A.A., published, among other means, through our customer service center, our associated distributors, as well as in the privacy policy available on the website (...).

We are at the Agency's disposal to respond to Ms. A.A.A. regarding the request for the right of access, the complete content of which has not been possible to recover (...)."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on October 11, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present any arguments they deemed appropriate.
The respondent indicated that they attached the response sent to the complainant at the email address listed in the complaint submitted to this Agency.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, she may formulate any arguments she considers appropriate, stating, in summary, "(...) I remain dissatisfied as I do not...

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28001 – Madrid
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3/8

they have sent the correct recording from the Legal Department for Data Verification where the conditions of the portability contract for the line ***PHONE.1 and the name of the holder must be verified."

FIFTH: The responsible party was granted a hearing, and they reiterated that they sent a letter to the claimant at the email address listed in the complaint.

"Additionally, the response to the inquiry from Ms. A.A.A. is attached, which was received through the Data Protection Delegate's mailbox, as annex document No. 2. The aforementioned response contains a detailed explanation to facilitate the listening of the voice recordings provided to Ms. A.A.A., which are the ones recorded in our systems regarding the portability referred to in the complaint."

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month and to prove that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on October 11, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of rights

established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to address such requests.

C/ Jorge Juan, 6

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28001 – Madrid

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5/8

request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, and the request will be deemed fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal

data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the denial of any of the rights regulated in the data protection legislation. Therefore, at

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6/8

In the present case, only the facts related to those rights will be analyzed and assessed, excluding the rest of the issues raised.

In the present case, and taking into account the provisions of the first paragraph of this legal basis, it has been established that the claimant sent an email to the respondent at the address te_atencion_web_movistar@telefonica.com requesting:

“In order to gather all possible information about the traceability of this number (***PHONE.1), which was held by Yoigo and was ported to Movistar in 2018. Therefore, I request all information you have regarding this, calls, recordings, document signatures, etc.”

During this procedure, the respondent states that the right was not exercised through the address established on their website, and that, therefore, they did not respond to the request since it was not sent through the established channel.

This Spanish Agency for Data Protection has verified that the email address where the claimant sent their exercise of rights is listed on the respondent's website under “Customer Service and Help – Movistar” “If you need a duplicate of an invoice from the last 5 years, you can request it through the email te_atencion_web_movistar@telefonica.com ...”

Consequently, it has been established that the claimant exercised their right of access before the respondent through one of the email addresses provided on their website, and that their right has not been addressed.

Although it is appropriate for such a request to be directed to the address declared by the controller for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the controller is a valid destination for the same, in accordance with Article 12 of LODPGDD, which states: “The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right cannot be denied solely on the grounds that the affected party opted for another means.”

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

“54. It should be noted that the data controller is not obliged to respond to a request sent to a random or incorrect email address (or postal address) not directly provided by the data controller, nor to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the data controller has provided an appropriate communication channel that can be used by the data subject.”

C/ Jorge Juan, 6

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In the case examined, the email used by the claimant was an email designated on the website for conducting transactions with the entity, not being an address that can be classified as random or incorrect, nor one that has not been provided by the data controller, nor is it a channel that is clearly not intended to receive requests related to the rights of the data subjects.

During the processing of this procedure, the respondent has provided a copy of the communication addressed to the claimant in which they indicate that they have the claimant's name and surname, ID number, and the voice recordings with the request for portability of the telephone line, the transcription of which was attached to this Agency in the written allegations.

The respondent has also provided a copy of an email sent to the claimant in which they indicate that "The voice recordings evidencing the portability request, from Yoigo to Movistar, are attached to the email we sent you on November 7 in compliance with the AEPD Resolution regarding the complaint of the matter. To listen to them, it is necessary to position the mouse pointer or select each of the attached recordings and select the play button."

The claimant expresses their disagreement with the requested information stating that "(...) they have not sent the correct recording from the Legal Department for Data Verification where the conditions of the contract for the portability of line ***PHONE.1 and the name of the holder must be verified."

From the examination of the documentation provided by the parties, it has been established that the respondent has partially responded to the claimant during the processing of this procedure by providing the requested information. However, no documentary evidence has been provided that allows us to consider that they have expressly responded to the claimant, thus fulfilling the provisions of Article 12.4 of the GDPR.

Consequently, it is appropriate to uphold the complaint filed.

It cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the formulation of allegations due to the present procedure, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow the request to be overlooked as if it had not been raised, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where it does not meet the required criteria, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

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8/8

Therefore, the request made obliges the data controller to provide an express response in all cases, using any means that justifies the receipt of the response.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Ms. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge TELEFÓNICA MÓVILES ESPAÑA, S.A.U. with NIF A78923125, to send the claimant a certification that addresses the requested right or denies it with justification indicating the reasons why it is not appropriate to address the request, in accordance with the provisions established in the body of this resolution, within ten working days following the notification of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article

58.2 of the GDPR.

SECOND: NOTIFY this resolution to Ms. A.A.A. and to TELEFÓNICA MÓVILES ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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